

**NEW YORK SUPREME COURT
COUNTY OF NEW YORK**

People v. Luigi Nicholas Mangione
Ind. No. 75657/2024

September 16, 2025

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MS. FRIEDMAN AGNIFILO: Karen Friedman Agnifilo, Marc Agnifilo, and Jacob Kaplan, on behalf of Luigi Mangione. Good morning.

THE COURT: All right. Good morning, everyone. You all should have gotten an electric copy of the decision.

So just to summarize, I want to say that I carefully looked over your submissions, the defense motions, the People's response to those motions. I carefully reviewed the Grand Jury minutes, the evidence that was presented before the Grand Jury.

As to Counts One and Two, charging the defendant with Murder in the First Degree, and Murder in the Second Degree, under the terrorism statute, the evidence put forth before the Grand Jury was legally insufficient for those charges. Therefore, those two charges are dismissed.

As to the remainder counts, the evidence before the Grand Jury was legally sufficient and they remain, including Murder in the Second Degree, intentional.

As to the defendant's motion to dismiss under double jeopardy grounds, that's premature. The defendant has not been tried in any other jurisdiction under similar alleged facts, and I'm not persuaded by the defendant's motion to stay this prosecution. So that is denied.

As to hearings that were requested, the People consented to all hearings, a Huntley hearing, a Mapp hearing, and should the People put on a non-eyewitness, identifying witness, a Mosley hearing would be held.

That's the decision of the Court.

So I'd like to discuss scheduling, if you can come on up for that.

[proceeding continues]

THE COURT: Okay. Any objection to that certificate of compliance needs to be -- obviously, you'll talk to the People, see if you can rectify anything you believe is missing, and file any motion within thirty days. Okay?

MS. FRIEDMAN AGNIFILO: Thank you.

THE COURT: All right. Come on up.

(Discussion at the bench.)

THE COURT: All right. We had a discussion at the bench about scheduling the hearings, and I believe all sides agree that on December 1st we will start the hearings in this case.

Counsel do you want to be heard?

MS. FRIEDMAN AGNIFILO: Yes, your Honor. We have an open motion to the Court regarding the Aetna subpoena.

THE COURT: Yes. I'm making no judgments about the legality of the subpoena. However, the People will be precluded from using anything received under that subpoena.

MS. FRIEDMAN AGNIFILO: Thank you, your Honor.

And, your Honor, at the bench we discussed this issue of 250.10 notice, and we respectfully would like an opportunity to file a motion with the Court, which we intend to do in the next two weeks.

THE COURT: Well, the next two weeks, you don't have much time.

MS. FRIEDMAN AGNIFILO: We understand.

THE COURT: So get it as soon as possible, actually.

MS. FRIEDMAN AGNIFILO: Okay. And one last thing, your Honor, we would like an opportunity to view the property that will be the subject of the Mapp hearing from the District Attorney.

THE COURT: Okay. You can work that out.

[proceeding continues]

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